

B. TRADITIONAL KNOWLEDGE — 8 ITEMS

21. Traditional Knowledge — TK

Knowledge developed and maintained by communities over generations.

Ayurveda examples:

- medicinal plants
- formulations
- traditional preparation methods
- therapeutic knowledge

22. TKDL — Traditional Knowledge Digital Library

A major Indian defensive mechanism for documenting traditional knowledge and helping patent examiners identify relevant prior art.

Memorize:

TKDL = Traditional Knowledge documentation + prior-art protection.

23. Prior Art

Information already publicly known before the relevant patent filing/priority date.

24. Traditional Knowledge as Prior Art

Existing traditional knowledge can be highly relevant when assessing whether a claimed invention is genuinely new.

25. Defensive Protection

Protection aimed at preventing others from wrongly obtaining IP rights over existing traditional knowledge.

26. Positive Protection

Protection aimed at enabling legitimate rights/benefits for knowledge holders where applicable.

27. Genetic Resources

Biological material of actual or potential value.

Important because Ayurveda frequently involves biological resources.

28. Associated Traditional Knowledge

Traditional knowledge associated with genetic resources.

This connects directly with the international WIPO treaty discussed below.